Ronald I. Raether, Bar No. 303118
ron.raether@troutman.com
TROUTMAN PEPPER HAMILTON SANDERS LLP
5 Park Plaza, Suite 1400
Irvine, CA 92614-2545
Telephone: 949.622.2700
Facsimile: 949.622.2739

Jessica Lohr, Bar No. 302348
jessica.lohr@troutman.com
TROUTMAN PEPPER HAMILTON SANDERS LLP
11682 El Camino Real, Suite 400
San Diego, CA 92130-2092
Telephone: 858.509.6000
Facsimile: 858.509.6040

Attorneys for Defendant
ACCURATE BACKGROUND LLC

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

v.

AMAZON.COM SERVICES, LLC, AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC, and DOES 1 to 5,

Defendants.

Case No. 8:22-CV-01727-FWS-JDE

Honorable Fred W. Slaughter

DEFENDANT ACCURATE BACKGROUND LLC'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT

Date: February 16, 2023
Time: 10:00 a.m.
Place: Courtroom 10D

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on February 16, 2023, at 10:00 a.m., or as soon thereafter as counsel may be heard in the above-entitled Court, located at 411 West 4th Street, Room 1053 Santa Ana, CA 92701, in Courtroom 10D, Defendant Accurate Background, LLC ("Accurate") hereby moves to dismiss Plaintiff Miguel Lerma, Jr.'s ("Lerma") First Amended Complaint as against Accurate, pursuant to Fed. R. Civ. P. 12(b)(6).

Defendant's motion is based upon this notice of motion and motion, the memorandum of points and authorities in support thereof, the Request for Judicial Notice and exhibits attached thereto, all pleadings and papers on file in this action, and such further arguments and matters as may be presented to the Court prior to or at the time of the hearing of this motion.

This motion is made following the conference of counsel pursuant to L.R. 7-3, which took place on December 6, 2022.

Dated: December 15, 2022

TROUTMAN PEPPER HAMILTON SANDERS LLP

By: */s/ Jessica Lohr*
Ronald I. Raether
Jessica Lohr

Attorneys for Defendant
ACCURATE BACKGROUND LLC